

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVEN JACKSON and MICHAEL DOWNS,

SUMMONS

Plaintiffs,

Index No.
Purchased:

-against-

CITY OF NEW YORK, ANTHONY RILEY and JOHN
OR JANE DOE 1-10,

Plaintiffs Designates Bronx County
as the Proper Venue for Trial

Defendants.

Venue is the county in which the
causes of action arose

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 26, 2024

SIM & DEPAOLA, LLP

Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

s/Junya Zeng

Junya Zeng, Esq.
Attorneys for Plaintiffs

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York

100 Church Street

New York, New York 10007

ANTHONY RILEY (Badge #15799, Tax #971639)

Via 43rd Precinct

900 Fteley Ave,

Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVEN JACKSON and MICHAEL DOWNS,

Plaintiffs,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, ANTHONY RILEY and JOHN
OR JANE DOE 1-10,

Defendants.

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Plaintiffs, **DAVEN JACKSON** and **MICHAEL DOWNS**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, as and for their complaint against the Defendants, **CITY OF NEW YORK, ANTHONY RILEY** and **JOHN OR JANE DOE 1-10**, hereby alleges and states as follows:

1. This is a civil rights action, in which Plaintiffs seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of their civil rights, as enumerated by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose on October 8, 2023, when defendants, acting under color of state law, acting under color state law, unlawfully stopped, questioned, searched, battered and assaulted, and applied excessive force Plaintiffs toward in the vicinity of 167 Street and Webster Ave, County of Bronx, State of New York. As a result, Plaintiffs were deprived of their liberty and suffered various physical, emotional and psychological injuries. Plaintiffs Daven Jackson was

examined and treated for his injuries at the Emergency Room, and Plaintiffs Michael Downs went to Lincoln Hospital for treatment.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. This action and associated claims have been filed within the applicable statute of limitations, which is three years for Plaintiffs' state and federal claims.

5. Under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiffs is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

6. Plaintiffs have timely served the City of New York, Office of the Comptroller, with notice of their claims within 90 days of the date(s) from which they arose.

7. Plaintiffs have conducted the oral examination, pursuant to Section 50-h of the New York General Municipal Law.

8. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as this venerable Court may deem just and proper.

PARTIES

9. At all relevant times herein, Plaintiff, Ms. Daven Jackson("JACKSON") is a resident of Bronx County, New York.

10. At all relevant times herein, Plaintiff, Mr. Michael Downs ("DOWNS") is a resident of Bronx County, New York.

11. At all relevant times herein, Defendant CITY OF NEW YORK (“CITY”) is a municipal corporation duly organized and existing under the laws of the State of New York.

12. At all relevant times herein, the New York City Police Department (“NYPD”) was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant CITY.

13. At all relevant times herein, Defendant CITY, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, captains, and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

14. At all relevant times herein, Defendant CITY was responsible for enforcing the rules and regulations of the NYPD and for ensuring that the NYPD personnel obey the laws and constitutions and laws of the United States, State of New York and City of New York.

15. At all relevant times herein, Defendant ANTHONY RILEY (“RILEY”) was a police officer, supervisor, policymaker or official employed by the NYPD or City of New York, under NYPD Shield No. 15799 and Tax No. 971639 and further assigned to the 43rd NYPD Precinct. As such Defendant RILEY was acting in the scope of her employment and under color of state law. Defendant RILEY is being sued in hsi official and individual capacities.

16. At all relevant times herein, Defendants, JOHN or JANE DOE 1-10, were police officers, detectives, sergeants, policymakers or officials employed by the NYPD, or CITY. At this time, Plaintiffs does not know the true names, identities or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants. The names,

JOHN or JANE DOE 1-10, are fictitious and are intended as placeholders for the employees, agents or other personnel who caused to Plaintiffs to be falsely arrested, assault, battered, maliciously prosecuted, who subjected Plaintiffs to excessive force or who aided, abetted, assisted or acted in concert with any other defendants to do the same.

17. At all relevant times herein, Defendants, including RILEY, JOHN or JANE DOE 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

18. On October 8, 2023, at approximately 2:00 a.m., Plaintiffs were in obedience of all local, state and federal rules, regulations, statutes and laws, when they were caused to be unlawfully stopped, detained, battered and assaulted, seized and searched, by or at the direction of Defendants, including RILEY, JOHN or JANE DOE 1-10 in the vicinity of 167 Street and Webster Ave, County of Kings, City and State of New York.

19. Defendants, including RILEY, JOHN or JANE DOE 1-10, illegally targeted Plaintiffs, because of their race, religion, national origin or other improper characteristic for adverse police action, illegally approached and falsely accused Plaintiffs of a criminal acts before illegally seizing their person with their outstretched hands violently and aggressively grabbing Plaintiffs' head and body, without probable cause, reasonable suspicion, valid search or arrest warrant, or any legal justification whatsoever as to the commission of unlawful conduct on the part of Plaintiffs.

20. Thereafter, Defendants, including RILEY, JOHN or JANE DOE 1-10, then illegally searched Plaintiffs' person by aggressively shoving their hands into their clothes and intimate areas, without probable cause, reasonable suspicion, valid search or arrest warrant, or any legal justification whatsoever.

21. At the said date and time, Plaintiffs JACKSON was pushed by Defendants, including RILEY, JOHN, or JANE DOE 1-10, against the gate, resulting in multiple scratches on Plaintiffs JACKSON's arm. Plaintiffs JACKSON's phone was slammed onto the ground.

22. At the said date and time, Plaintiffs JACKSON tried to pick up his phone from the ground, while Defendants, including RILEY, JOHN, or JANE DOE 1-10, aggressively assaulted and battered Plaintiffs JACKSON's body, and by choking his neck.

23. At the said date and time, Plaintiffs DOWNS was pushed against the gate and his chest was pressed with excessive force by Defendants, including RILEY, JOHN or JANE DOE 1-10.

24. As a result, the Plaintiffs suffered substantial physical and emotional injuries. Plaintiffs DOWNS later suffered an asthma attack.

25. Plaintiffs JACKSON was examined and treated for his injuries at the Emergency Room, and Plaintiffs DOWNS went to Lincoln Hospital for treatment.

26. Defendants, including RILEY, JOHN or JANE DOE 1-10, were reckless, careless, and or negligent in causing Plaintiffs to suffer substantial physical and emotional injuries.

27. Defendants, including RILEY, JOHN or JANE DOE 1-10 intentionally, negligently, and/or recklessly caused injury to Plaintiffs.

28. The actions of Defendants, including RILEY, JOHN or JANE DOE 1-10 demonstrated their deliberate indifference to the safety of Plaintiffs in violation of their constitutional rights. Defendants subjected Plaintiffs to such deprivations, either in a malicious or reckless disregard of Plaintiffs' rights or with deliberate indifference to those rights protected under the fifth, eight, and fourteenth amendments.

29. The direct and proximate result of the above Defendants' acts are that the Plaintiffs suffered severe and permanent injuries of a psychological and physical nature.

30. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil

31. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs' injuries.

32. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

33. Defendants' actions, which occurred without even the semblance of justification, were so blatantly violative of Plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

34. Plaintiffs assert that they were illegally targeted for violent retaliation by Defendants, including RILEY, JOHN or JANE DOE 1-10, because of their race, color, ethnicity or national origin, as said defendants falsely accused, assaulted and battered Plaintiffs because of their biased, prejudiced and otherwise impermissible feelings towards African Americans, such as Plaintiffs.

35. Defendants, including RILEY, JOHN or JANE DOE 1-10, did not have a valid arrest warrant, search warrant or any legal authority to arrest Plaintiffs.

36. Defendants, including RILEY, JOHN or JANE DOE 1-10, did not have probable cause to or reasonable suspicion to arrest, detain, or stop Plaintiffs.

37. Defendants, including RILEY, JOHN or JANE DOE 1-10, did not observe Plaintiffs commit any crimes or violations of the law and did not possess any credible or reliable information or evidence indicative of such.

38. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

39. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

40. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil

rights of those who may interact with its employees, including Defendants, JOHN OR JANE DOE 1-10.

41. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

42. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

43. The aforementioned acts of Defendants, including RILEY and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

44. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, physical injury, surgery, protracted disability, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety As such, Plaintiffs were caused to be wrongfully arrested and maliciously prosecuted for crimes they were clearly innocent of and which no probable cause or reasonable suspicion *ever* existed to believe that said crimes were perpetrated by Plaintiffs.

45. At no point did Defendants, including RILEY, JOHN or JANE DOE 1-10, ever observe Plaintiffs commit any crime or offense.

46. At no point were the Defendants, including RILEY, JOHN or JANE DOE 1-10, ever told by any witnesses that Plaintiffs committed any crime or violation of the law.

47. Defendants, including RILEY, JOHN or JANE DOE 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiffs, or that Plaintiffs were guilty of any crime, as they each were not only fully aware that Plaintiffs ever committed criminal offenses.

48. While Plaintiffs were unlawfully detained, Defendants, including RILEY, JOHN or JANE DOE 1-10, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiffs maliciously prosecuted.

49. Defendants, including RILEY, JOHN or JANE DOE 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, namely the fabrications of the false accounts stating that Plaintiffs committed criminal offenses.

50. During all of the events described, Defendants, including RILEY, JOHN or JANE DOE 1-10, acted maliciously and with intent to injure Plaintiffs.

51. At all times relevant hereto, Defendants, including RILEY, JOHN or JANE DOE 1-10, were involved in the decisions to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.

52. At all times relevant hereto, Defendants, including RILEY, JOHN or JANE DOE 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' criminal prosecution.

53. Defendant CITY has engaged in a policy, custom, or pattern and practice of stopping vehicles occupied by members of protected classes, especially African Americans and Hispanic or

Latino individuals, without probable cause or reasonable suspicion to do so and then using excessive force in the process of unlawfully arresting said individuals.

54. Defendant CITY has also engaged in a policy, custom, or pattern and practice of concealing their unlawful arrests by fabricating false accounts that African Americans were observed committing criminal acts, when no such acts were ever committed.

55. Plaintiffs asserts that Defendants, including RILEY, JOHN or JANE DOE 1-10, falsely arrested, assaulted, and maliciously prosecuted him, due solely to their racial discriminatory prejudices against African American or black persons and Hispanic or Latino persons and their desire to satisfy an unconstitutional and unlawful arrest quota.

56. Plaintiffs further asserts that Defendants, including RILEY, JOHN or JANE DOE 1-10, acted in such a sadistic and reprehensible manner, due to their assumption that defendants' version of events would undoubtedly and unduly be credited over Plaintiffs', solely because Plaintiffs were African American.

57. Defendants, including RILEY, JOHN or JANE DOE 1-10, arrested, assaulted, battered and maliciously prosecuted Plaintiffs, not because of any probable cause to believe Plaintiffs had committed any crimes, violations of the law, but because Plaintiffs were African American.

58. Defendants, including RILEY, JOHN or JANE DOE 1-10, discriminated against Plaintiffs by arresting, assaulting, battering, and maliciously prosecuted Plaintiffs, solely due to defendants' perception or consideration of Plaintiffs' race, ethnicity, national origin, immigration status, religion, gender or age.

59. Defendants, including RILEY, JOHN or JANE DOE 1-10, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the unlawful stops, searches, assaults, seizures, arrests and malicious prosecutions against Plaintiffs.

60. Defendants, including RILEY, JOHN or JANE DOE 1-10, possessed no valid reason to restrict Plaintiffs' movements, which gives rise to the strong inference that the unlawful acts committed by defendants against plaintiffs, were discriminatorily motivated and enacted upon.

61. Defendants, including RILEY, JOHN or JANE DOE 1-10, subjected Plaintiffs to disparate treatment compared to other individuals similarly situated, because defendants do not question, arrest or maliciously prosecute other victims of gang assaults who were not members of a protected class, especially victims who are visibly injured, distressed, and fleeing for their safety.

62. Defendants, including RILEY, JOHN or JANE DOE 1-10, would not have arrested Plaintiffs and fabricated false accounts of plaintiffs committing criminal offenses, if plaintiffs were not African American.

63. As a direct and proximate result of the acts of defendants, including the CITY, and JOHN or JANE DOE 1-10, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the First, Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

64. Defendants, including RILEY, JOHN or JANE DOE 1-10, arrested and caused a criminal prosecution to be initiated against Plaintiffs, because of their desires to use Plaintiffs' arrest and criminal prosecution to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police

procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

65. Defendants, including RILEY, JOHN or JANE DOE 1-10, arrested, applied excessive force and initiated a malicious prosecution against Plaintiffs in retaliation for Plaintiffs' exertion of their constitutional right to freely express their opinion and inquiries, namely Plaintiffs' displeasure with the manner in which Defendants addressed them and their request for an explanation as to why Defendants acted so discourteously toward Plaintiffs.

66. As a result of Defendants actions, Plaintiffs do not feel secured of their constitutional rights, which has prevented them from venturing from their house for a prolonged period of time and has effectively permanently chilled their desire and ability to communicate with police officers.

67. Plaintiffs asserts that the Defendants, including RILEY, JOHN or JANE DOE 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and Defendant CITY that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and CITY or, at the very least, conclusive evidence that the CITY and NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers or are incarcerated in their facilities.

68. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without

incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

69. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

70. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemin throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

71. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

72. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

73. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

74. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent

reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

75. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

76. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

77. Other articles include: (i) "Testilying' by Police: A Stubborn Problem," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York*

Times, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

78. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

79. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs’ arrest without probable cause and injuries while in custody of CITY.

80. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion, the appropriate amount of force to be used, and the proper care of arrestees.

81. Defendants' actions, pursuant to Plaintiffs' underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

82. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD and City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

83. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

84. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City of New York or NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement or correctional officers,

or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including the above-named defendants.

85. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

86. The aforementioned acts of defendants, including CITY, and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth, Eighth or Fourteenth Amendments to the United States Constitution, as well as the laws and constitution of the State of New York.

87. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth herein.

89. Plaintiffs engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

90. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

91. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.

92. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities or by chilling her desire to further participate or engage in such protected speech or activities.

93. Accordingly, Plaintiffs' right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by Defendants.

94. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

95. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

96. The above paragraphs are here incorporated by reference as though fully set forth herein.

97. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

98. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

99. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of her liberty and the initiation of criminal charges against her.

100. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing her from further pursuing said protected

speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

101. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

102. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

103. The above paragraphs are here incorporated by reference as though fully set forth herein.

104. At all relevant times, Defendants caused Plaintiffs to fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.

105. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered him without his consent or justification.

106. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

107. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

109. The above paragraphs are here incorporated by reference as though fully set forth herein.

110. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

111. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered her without her consent.

112. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

113. The above paragraphs are here incorporated by reference as though fully set forth herein.

114. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

115. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Administrative Code of the City of New York, Section 14-151

116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Plaintiffs, as Hispanic or Latino or African American males, are members of a racial minority and protected class.

120. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

121. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

122. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

123. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

124. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

125. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

126. Accordingly, Defendants violated Plaintiffs' rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

127. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

129. The above paragraphs are here incorporated by reference as though fully set forth herein.

130. Plaintiff, as a Hispanic or Latino female, is a member of a racial minority and protected class.

131. Defendants discriminated against Plaintiffs on the basis of their race, color or ethnicity
132. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.
133. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
134. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
135. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs specifically the laws governing lawful use of force.
136. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
137. Accordingly, Defendants violated Plaintiffs' rights, under the Fourteenth Amendment.
138. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

139. The above paragraphs are here incorporated by reference as though fully set forth herein.
140. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
141. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

142. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

143. The above paragraphs are here incorporated by reference as though fully set forth herein.

144. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

145. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

146. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

147. The above paragraphs are here incorporated by reference as though fully set forth.

148. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

149. Defendant City breached those duties of care.

150. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

151. Defendant City knew or reasonably should have known of its employees' propensity for committing civil rights violations.

152. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

154. The above paragraphs are here incorporated by reference as though fully set forth.

155. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

156. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

157. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

158. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

159. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

160. Defendant City's conduct caused Plaintiffs to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, & Fourteenth Amendments thereto.

161. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

162. The above paragraphs are here incorporated by reference as though fully set forth herein.

163. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

164. Accordingly, Defendants committed a crime of violence against Plaintiffs and violated Plaintiffs' rights, pursuant to the N.Y.C. Admin. Code § 10-403.

165. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

166. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiffs reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs hereby demand a trial by jury.

Dated: Bayside, New York
August 26, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

s/Junya Zeng
Junya Zeng, Esq.
Attorneys for Plaintiffs

ATTORNEY VERIFICATION

I, Junya Zeng, an attorney admitted to practice in the courts of New York State, state that I am an associate with the law firm of Sim & DePaola, LLP, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, because Plaintiffs resides outside the county where deponent maintains her office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 26, 2024

s/Junya Zeng
Junya Zeng, Esq.